

Court No. - 21

Case :- WRIT - C No. - 14838 of 2023

Petitioner :- Ram Prasad

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Rakesh Kumar Mishra

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Sri Pranjal Mehrotra, learned counsel for the respondent-Electricity Department, prays for time to obtain instructions.

List as fresh on 12.5.2023.

In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned recovery proceedings.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 2.5.2023

Jaideep/-

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Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

1. The instant petition has been filed challenging the demand notice dated 24.1.2023, issued by respondent no. 2 for recovery of electricity dues from the petitioner in a case of theft of electricity.
2. Learned counsel for the respondent Sri Pranjal Mehrotra states that since in the notice of provisional assessment no date for hearing was fixed and therefore it has been withdrawn, as well as the impugned demand notice and that the respondents will proceed afresh.
3. Accordingly, the petition is disposed of with liberty to the respondents to proceed afresh strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 12.5.2023

Jaideep/-